

HOUSE BILL 1375

By Clemmons

AN ACT to amend Tennessee Code Annotated, Title 33;
Title 49; Title 63 and Title 68, relative to mental
health.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 33, Chapter 6, is amended by adding
the following as a new part:

33-6-1101.

This part is known and may be cited as the "Tennessee Mental Health Volunteer
Alliance Act."

33-6-1102.

(a) The department shall create and manage a statewide volunteer database of
qualified mental health professionals for the purpose of volunteering to provide on-site or
virtual mental healthcare services at a school or public facility immediately after an act of
gun violence or a significant traumatic event or disaster has taken place in or around the
school or public facility for the benefit of students, educators, and staff.

(b) The department shall create a volunteer application process for qualified
mental health professionals to be listed in the database.

(c) The database is named the "Tennessee Mental Health Volunteer Alliance."

33-6-1103.

The commissioner, or the commissioner's designee, shall:

(1) Act as the director of the database;

(2) Verify the licensure qualifications of a qualified mental health
professional who volunteers and applies to be included in the database;

- (3) Initiate the requests for volunteers from the database following:
 - (i) An event as described in § 33-6-1102; or
 - (ii) A request made pursuant to § 33-6-1104; and
- (4) Track all service hours and hourly rates provided by the qualified mental health professionals as described in § 33-6-1105.

33-6-1104.

The lead official at a school or public facility may submit a request for one (1) or more qualified mental health professionals from the database that must specify:

- (1) The type of qualified mental health professionals needed;
- (2) The number of qualified mental health professionals needed; and
- (3) The duration of the requested services.

33-6-1105.

(a) The services provided by a qualified mental health professional under this part are an in-kind contribution or pro bono services.

(b) The qualified mental health professional shall submit service hours and the qualified mental health professional's hourly rate to the department.

33-6-1106.

The department is authorized to promulgate rules to effectuate this part. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

33-6-1107.

Subject to appropriations, a recurring amount of two hundred fifty thousand dollars (\$250,000) must be used to fund the database's administrative overhead and any additional costs, including virtual counseling services software, reimbursing qualified mental health professionals for travel expenses with the federal mileage rate, and

lodging when providing on-site services, if requested. The fund must reimburse the school or public office for any direct costs incurred for using this database. The unexpended balance of such funds remaining at the end of a fiscal year do not revert to the general fund, but must be transferred and deposited into the school safety fund, as established in § 49-1-235, to be expended solely for the purposes of that fund.

SECTION 2. Tennessee Code Annotated, Title 49, Chapter 1, Part 2, is amended by adding the following as a new section:

49-1-235.

(a) A school safety fund is established to provide funding to schools in this state for the sole purpose of purchasing safety technology and equipment.

(b) The school safety fund consists of:

(1) Monies not utilized in a fiscal year by the Tennessee Mental Health Volunteer Alliance Act, as established in title 33, chapter 6, part 11, and deposited to the fund pursuant to § 33-6-1107;

(2) Appropriations made by the general assembly; and

(3) Other monies, public or private, by way of gift or grant.

(c) The state treasurer shall invest moneys in the fund for the benefit of the fund in accordance with § 9-4-603. Interest accruing on investments and deposits of the fund must be credited to and remain part of the fund.

(d) Any unencumbered moneys and any unexpended balance of the fund remaining at the end of a fiscal year do not revert to the general fund, but must be carried forward until expended in accordance with this section. No part of the fund must be diverted to the general fund or any other public fund.

(e) The department of education shall administer the fund and distribute the monies to schools based on criteria established by such department.

(f) The department of education and the department of mental health and substance abuse services are authorized to promulgate rules to effectuate this section. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

(g) All expenditures from the fund are subject to review in the form of an annual report submitted on or before January 1 of each year by the commissioner of education to the education committee of the senate and the committee of the house of representatives having jurisdiction over education matters.

SECTION 3. For the purposes of promulgating rules, this act takes effect upon becoming law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2025, the public welfare requiring it.